

Part I. Constitutional Framework Governing Federal Executive Ethics

A. The Constitution Does Not Contain a Freestanding "Ethics Power"

Congress's authority to regulate executive ethics does not derive from a single constitutional provision expressly authorizing "ethics legislation." Rather, it arises from the interaction of several enumerated powers, including Congress's authority to enact laws necessary and proper to carry into execution federal governmental powers, establish and structure federal offices, appropriate public funds, and regulate the administration of federal programs. The research memorandum accordingly identifies the Necessary and Proper Clause as a central constitutional foundation for federal ethics legislation.

This is an important starting point because it avoids framing executive ethics as an isolated subject outside Congress's ordinary legislative authority. Ethics requirements ordinarily serve functions Congress is plainly entitled to pursue: preventing corruption, protecting public resources, establishing conditions governing federal employment, and ensuring that federal programs are administered according to law.

The constitutional question, therefore, is not whether Congress possesses some freestanding power to "regulate ethics." Rather, it is whether a particular ethics requirement is sufficiently connected to Congress's legitimate constitutional authority and, especially where the President is concerned, whether its implementation or enforcement intrudes upon powers the Constitution assigns to the Executive.

The research supports a fundamental distinction:

Congress generally may determine what federal law requires; the Constitution places greater limits on Congress's ability to determine who within the Executive Branch will administer that law, how executive power will be exercised, and whether the President may exercise a power the Constitution assigns to him.

That distinction becomes increasingly important as ethics regulation moves from establishing substantive standards toward investigation, adjudication, and enforcement.

B. Congress Possesses Substantial Authority to Regulate Subordinate Executive Officers

The constitutional foundation is strongest when Congress regulates **subordinate executive officials rather than the President personally**.

Executive officers generally exercise authority delegated through statutes, regulations, and presidential direction. Congress therefore possesses substantial authority to prescribe their statutory duties, qualifications, financial restrictions, disclosure obligations, and other conditions governing the exercise of their offices.

The three research memoranda consistently identify this distinction as structural rather than merely functional. An ethics restriction imposed upon a subordinate executive officer ordinarily regulates the person through whom presidential authority is exercised; it does not necessarily prevent the President himself from exercising a constitutional power.

This explains why Congress can ordinarily require executive officials to:

- disclose financial interests;
- avoid specified conflicts;
- comply with gift restrictions;
- refrain from representing private parties before the Government;
- comply with outside-compensation restrictions;
- observe post-government employment limitations; and
- recuse themselves from particular matters under applicable statutory regimes.

The Supreme Court's conflict-of-interest jurisprudence provides particularly strong support for Congress's authority in this area. The research identifies *United States v. Mississippi Valley Generating Co.* as a leading precedent establishing that Congress may impose objective conflict-of-interest rules without requiring proof of actual corruption or actual financial loss.

The constitutional issue therefore changes when the same rule is applied directly to the President.

C. Article II Makes the President Constitutionally Different From Other Executive Officers

Article II fundamentally alters the analysis because the President is not merely another federal officer occupying a position created by statute.

The Constitution itself establishes the Presidency and vests "[t]he executive Power" in the President. The President consequently possesses constitutional authority and responsibilities that Congress cannot simply reassign to another official or disable through ordinary legislation.

The Take Care Clause reinforces this structural principle. Presidential execution of federal law is not merely an administrative responsibility created by Congress; it is itself a constitutional responsibility.

The modern Article II cases repeatedly emphasize this distinction. *Seila Law LLC v. Consumer Financial Protection Bureau* described the President as the constitutionally responsible officer for execution of federal law, while *Collins v. Yellen* reaffirmed the constitutional importance of presidential control over officers exercising executive authority.

This does **not** establish a general presidential exemption from federal law. The research is clear on that point. *United States v. Nixon*, *Clinton v. Jones*, *Nixon v. Administrator of General Services*, *Trump v. Mazars*, and *Trump v. Vance* all demonstrate that presidential status does not produce categorical immunity from legal regulation, judicial process, or governmental demands for information.

Instead, Article II requires a more precise inquiry:

Does the particular ethics requirement regulate presidential administration, or does it materially interfere with the President's constitutionally assigned authority?

That is the central constitutional distinction for presidential ethics regulation.

D. Presidential Financial Disclosure Represents the Strongest Case for Direct Regulation

Financial disclosure provides the clearest example of constitutionally permissible ethics regulation applicable directly to the President.

Congress has expressly included the President within the federal financial-disclosure regime. The D.C. Circuit has recognized the application of the Ethics in Government Act to the President in *Lovitky v. Trump*, including the statutory requirement that specified financial information be disclosed.

The constitutional significance of disclosure lies partly in what it **does not** require.

A disclosure obligation requires the President to provide information. It does not necessarily require the President to:

- sell an asset;
- transfer authority;
- abstain from a decision;
- recuse himself;

- surrender an executive function; or
- alter the substantive exercise of presidential power.

The D.C. Circuit's litigation concerning *Trump v. Mazars* expressly recognized this distinction. It observed that requirements involving presidential divestiture or recusal could present more difficult constitutional questions because they could "disempower" the President from performing constitutional functions, while disclosure imposed substantially fewer burdens.

The resulting distinction is important:

Disclosure regulates what information the President must provide; recusal and divestiture potentially regulate what the President may do.

The latter therefore presents a substantially different Article II question.

E. Presidential Information Is Not Categorically Immune From Governmental Process

The Supreme Court's presidential-information cases reinforce the conclusion that presidential status does not create categorical immunity from ethics-related information requirements.

In *Trump v. Mazars USA, LLP*, the Court rejected both an absolute presidential immunity from congressional demands for personal financial information and application of the ordinary congressional-subpoena standard. Instead, it required heightened consideration of separation-of-powers concerns because of the President's "unique constitutional position." The research therefore treats *Mazars* as supporting two propositions simultaneously: Congress possesses legitimate authority to investigate matters involving the President, but congressional demands for presidential information require special structural safeguards.

Trump v. Vance similarly rejected categorical presidential immunity from a state grand-jury subpoena seeking personal financial records. Presidential status therefore does not make personal financial information constitutionally inaccessible.

These decisions do not establish that every disclosure or investigative requirement is constitutional. Rather, they demonstrate that the constitutional analysis turns upon **the nature of the information, the governmental purpose, the burden imposed, and the relationship between the demand and presidential functions.**

F. The Constitutional Difficulty Increases When Ethics Regulation Restricts Presidential Conduct

The strongest constitutional distinction emerging from the research is between **regulating presidential administration** and **regulating presidential conduct**.

Congress may regulate the machinery through which executive power is exercised, including:

- financial reporting;
- recordkeeping;
- disclosure;
- reporting requirements;
- procedural safeguards;
- regulation of subordinate officers;
- auditing; and
- investigative procedures that do not directly disable presidential action.

A materially different question arises when Congress attempts to dictate what the President may personally do with an Article II power.

Examples include:

- prohibiting the President from taking a particular official action because of a financial interest;
- compelling presidential recusal;
- requiring presidential divestiture;
- making the exercise of presidential power criminal because of a financial interest; or
- authorizing criminal prosecution of an official presidential act.

These requirements potentially regulate **the exercise of constitutional power itself**, rather than merely the administration of that power.

The research therefore supports an analytical spectrum:

**Disclosure → transparency → investigation → recusal → divestiture →
substantive prohibition on presidential action**

This should not be treated as a formal constitutional test announced by the Supreme Court. It is a synthesis of the authorities and should be described as such. The research expressly cautions that the Court has not squarely resolved the constitutionality of presidential recusal or divestiture requirements.

G. Presidential Immunity Further Complicates Enforcement

Trump v. United States adds an additional constitutional limitation that must be distinguished from the authority to enact an ethics rule in the first place.

The Court held that a former President enjoys absolute criminal immunity for exercises of core constitutional authority and at least presumptive immunity for other official acts. It did not hold that the President is generally exempt from federal law or that Congress lacks authority to enact prospective ethics requirements.

The implication for executive ethics is therefore principally one of **enforcement**.

Two questions must be separated:

1. **May Congress establish the underlying ethical obligation?**
2. **May the Government impose the particular remedy against the President for violating that obligation?**

The answer to the first may be yes while the answer to the second is no—or at least substantially more limited.

This distinction becomes particularly important where the alleged ethics violation consists of conduct that is itself an exercise of presidential constitutional authority. The research accordingly concludes that *Trump v. United States* makes direct criminal enforcement of ethics requirements against presidential official acts considerably more difficult than the mere existence of an ethics statute might suggest.

H. The Vice President Occupies an Intermediate Constitutional Position

The Vice President should not be treated either as an ordinary executive officer or as constitutionally identical to the President.

The Vice Presidency is established by Article II, while Article I, § 3 makes the Vice President President of the Senate and assigns the office constitutionally specified legislative functions. At the same time, Article II vests "[t]he executive Power" in the President, not the Vice President.

The Vice President therefore occupies an intermediate constitutional position.

Congress has a stronger basis for applying ordinary ethics requirements to the Vice President than to the President because the Vice President does not independently possess the constitutional executive power vested in the President. But Congress cannot simply regulate away the Vice President's constitutionally specified functions.

The appropriate distinction is consequently between:

1. **constitutional functions of the Vice President**, which Congress cannot substantially impair through ordinary legislation; and

2. **administrative or executive functions**, with respect to which Congress possesses greater regulatory authority.

Cheney v. United States District Court further demonstrates that the Vice President's close relationship to presidential deliberation can trigger significant separation-of-powers concerns even where the Vice President is not exercising the President's constitutional authority himself.

The constitutional basis for applying generally applicable ethics requirements to the Vice President is consequently **stronger than for the President, but weaker than for an ordinary subordinate executive official only insofar as the requirement implicates the Vice President's constitutionally specified functions.**

I. Congress's Authority Over Subordinate Officers Is Structurally Different

The constitutional basis for regulating presidential appointees and subordinate executive officials is considerably stronger.

Those officials ordinarily exercise authority delegated through statute and remain within the presidential chain of command. Congress may establish their duties and ethical obligations without necessarily preventing the President from exercising his own constitutional powers.

The removal cases establish the other side of this proposition.

Myers, *Free Enterprise Fund*, *Seila Law*, and *Collins* collectively demonstrate the constitutional importance of presidential supervision over officers exercising executive authority. The research therefore distinguishes between:

Congress regulating what executive officers may do

and

Congress determining whether the President may control the officers who execute federal law in his name.

The former is generally much easier to defend. The latter implicates Article II directly.

J. *Trump v. Slaughter* and the Constitutional Design of Ethics Enforcement

The Supreme Court's recent decision in *Trump v. Slaughter* materially strengthens this distinction.

As reflected in the research memorandum, the Court held that statutory for-cause removal protection for FTC Commissioners violated separation of powers and rejected the proposition

that an ethics-related or regulatory mission itself provides a basis for insulating executive officers from presidential control.

The consequence for executive ethics is significant.

Congress may establish substantive ethical standards without thereby possessing unlimited authority to create an independent enforcement institution insulated from presidential supervision.

The constitutional inquiry must therefore ask:

- Who investigates?
- Who adjudicates?
- Who imposes discipline?
- Who appoints the relevant official?
- Who may remove that official?
- Does the official exercise executive power?
- Is the official accountable through a presidential chain of authority?

The research identifies **rulemaking, administration, investigation, adjudication, and enforcement** as distinct constitutional stages. Article II concerns become progressively stronger as an ethics institution moves from establishing or administering standards toward exercising binding adjudicatory or coercive executive authority.

K. Independence and Impartiality Are Not Constitutionally Synonymous

This distinction may ultimately be one of the most consequential for the policy recommendations that follow.

Congress may reasonably want executive ethics administration to be:

- objective;
- professionally administered;
- consistent;
- transparent;
- procedurally regular; and
- resistant to partisan pressure.

But **professional impartiality does not necessarily require constitutional independence from presidential control.**

The modern Article II cases suggest that an ethics official can possess substantial professional independence in applying statutory standards while remaining subject to presidential appointment, supervision, and removal to the extent constitutionally required.

This distinction gives Congress a potentially durable design path:

Congress can seek impartial ethics administration without necessarily creating an enforcement institution that is constitutionally independent of the President.

That is likely to be a central consideration when the memorandum turns from constitutional doctrine to institutional design.

L. The Constitution's Principal Boundary Is Between Regulation and Control

Taken together, the authorities do not support either extreme proposition.

They do **not** establish that Congress is powerless to regulate presidential ethics.

Nor do they establish that Congress may impose upon the President every ethics requirement that it may constitutionally impose upon a subordinate executive officer.

Instead, the authorities support a structural distinction:

Congress generally may regulate:

- what information executive officials must disclose;
- what conflicts subordinate officers may have;
- what conduct constitutes prohibited self-dealing or corruption;
- what procedures agencies must use to administer ethics rules;
- what records must be maintained;
- how Congress may investigate matters for legitimate legislative purposes; and
- what statutory standards govern executive administration.

Article II imposes greater limits when Congress attempts to:

- directly control the President's exercise of an exclusive constitutional power;
- transfer executive enforcement authority to Congress;
- create an executive enforcement body insulated from constitutionally required presidential control;
- require another officer to determine whether the President may perform a constitutionally assigned function; or
- impose criminal consequences upon constitutionally protected presidential official acts.

The most important constitutional distinction is therefore **not "ethics law versus non-ethics law."**

It is:

regulation of executive conduct versus control of executive power.

M. Preliminary Constitutional Rule

The research supports the following working rule:

Congress possesses substantial constitutional authority to establish ethical standards governing executive officials, but Article II imposes increasingly significant limitations as Congress moves from establishing substantive standards toward controlling presidential administration, restricting the exercise of constitutionally vested presidential powers, or placing executive enforcement beyond presidential supervision.

For subordinate executive officials, Congress generally possesses broad authority to impose ethical obligations because those officials exercise delegated governmental authority within the constitutional structure of presidential administration.

For the President, however, the constitutional analysis is different. The President is not simply a federal employee subject to the same statutory conditions as subordinate officers. Congress may regulate presidential transparency and administration, but requirements that directly disable or condition the President's exercise of constitutional authority present substantially more difficult questions.

The Vice President occupies an intermediate position: Congress has greater authority to impose ordinary executive ethics requirements than it has over the President, but the Vice President's constitutionally assigned legislative and succession functions require separate consideration.

Finally, **enforcement architecture is itself constitutionally significant**. Congress cannot use ethics legislation as a means of assuming executive authority for itself, nor can it necessarily create an executive ethics bureaucracy exercising coercive executive power while insulated from presidential control. *Bowsher*, *Free Enterprise Fund*, *Seila Law*, *Collins*, and *Trump v. Slaughter* make that structural limitation increasingly important.

Preliminary conclusion

The Constitution therefore permits a substantial federal ethics regime, including a regime that reaches the President and Vice President. But it does **not** require—or necessarily permit—a

uniform regime treating the President, Vice President, and subordinate executive officers as constitutionally interchangeable.

The closer an ethics requirement comes to **transparency and administration**, the stronger Congress's constitutional position. The closer it comes to **recusal, divestiture, restriction of core presidential authority, criminal punishment for official acts, or independent executive enforcement**, the greater the constitutional difficulty.

Part II. The Existing Federal Ethics Regime

A. The Federal Ethics Framework Is Deliberately Differentiated

Federal ethics law does not operate as a single, uniform regime applicable identically to every federal official. Instead, Congress has created a layered system consisting principally of:

1. criminal conflict-of-interest statutes;
2. public financial-disclosure requirements;
3. government-wide Standards of Conduct;
4. agency-specific ethics programs;
5. Office of Government Ethics oversight and regulation;
6. Inspectors General and other investigative institutions; and
7. congressional oversight and appropriations mechanisms.

The most important feature for purposes of this memorandum is that **the President and Vice President are treated differently from subordinate executive officials.**

That distinction is not merely an administrative convention. It is reflected directly in the statutory and regulatory framework.

The result is a system in which the President and Vice President are expressly subject to certain transparency requirements while generally being excluded from the ordinary regulatory framework applicable to executive-branch employees.

This existing architecture provides an important baseline against which any proposed expansion of federal ethics regulation should be evaluated.

B. The Ethics in Government Act and Presidential Financial Disclosure

The clearest statutory example of Congress regulating the President is the Ethics in Government Act's financial-disclosure regime.

Under 5 U.S.C. § 13103, the President and Vice President are expressly included among the persons required to file public financial disclosure reports. The statute therefore does not rely upon an incidental or expansive interpretation of "executive employee" to reach the two offices; Congress specifically named them.

The implementing regulation likewise expressly identifies the President and Vice President as "public filers." 5 C.F.R. § 2634.202.

This is constitutionally significant for two reasons.

First, it demonstrates that Congress has long understood presidential status to be compatible with at least some direct statutory ethics regulation.

Second, it demonstrates that **Congress itself has already recognized that presidential uniqueness does not require presidential exemption from transparency requirements.**

The President and Vice President therefore occupy a peculiar position in the federal ethics system:

They are constitutionally unique officers who nevertheless have expressly legislated financial-disclosure obligations.

That fact should be given substantial weight in evaluating proposed legislation.

C. Presidential Disclosure Is Administered Through OGE

Congress also designed the disclosure regime to account for the President's unique position.

Under 5 U.S.C. § 13105, the President and Vice President submit their financial disclosure reports directly to the Director of the Office of Government Ethics.

That arrangement differs from the ordinary system for executive officials, whose reports generally proceed through agency ethics officials.

The significance is structural.

Congress has not simply said:

"The President must disclose financial information."

It has also created a federal mechanism through which that disclosure obligation can be **administered and reviewed outside the President's immediate staff structure.**

Yet the statute does not thereby create an independent constitutional authority over the President.

This distinction is important for our eventual institutional recommendations:

Congress has already demonstrated that direct federal oversight of presidential financial disclosure can coexist with Article II, but the existing model does not necessarily establish that OGE may exercise unrestricted coercive authority over the President.

The distinction between **oversight** and **command authority** should remain central.

D. The Government-Wide Standards of Conduct Generally Exclude the President and Vice President

The contrast with 5 C.F.R. part 2635 is striking.

The government-wide Standards of Conduct generally apply to federal executive employees, but the regulatory definition of "employee" excludes the President and Vice President.

This means that the federal ethics system does **not** simply treat presidential ethics as the highest tier of an otherwise uniform employee code.

Instead, Congress and OGE have created a bifurcated system:

President and Vice President

- public financial disclosure;
- certain statutory restrictions;
- specific ethics provisions;
- direct disclosure oversight through OGE.

Subordinate executive officials

- public or confidential financial disclosure, depending upon position;
- government-wide Standards of Conduct;
- criminal conflict-of-interest restrictions;
- agency-specific ethics programs;
- ethics counseling and certification;
- regulatory waivers and exemptions;
- disciplinary mechanisms.

This distinction is consistent with the constitutional analysis in Part I.

The President is not simply another executive employee because **the President's authority comes directly from Article II rather than from a statutory delegation from another federal officer.**

E. Section 208 Provides the Clearest Example of the Difference

The distinction is especially consequential with respect to 18 U.S.C. § 208.

Section 208 generally prohibits an officer or employee of the executive branch from participating personally and substantially in a particular matter in which the person has a specified financial interest.

The statute is one of the principal federal criminal conflict-of-interest provisions.

Yet the President and Vice President are not subjected to § 208 in the same manner as ordinary executive officers.

That produces an important legal distinction:

Congress has imposed a direct financial-disclosure requirement upon the President and Vice President while declining to place them within the ordinary criminal conflict-of-interest regime applicable to subordinate executive officers.

This is perhaps the clearest statutory evidence that Congress itself recognizes a distinction between:

knowing what financial interests the President possesses

and

legally prohibiting the President from participating in a governmental decision because of those interests.

The former primarily serves transparency.

The latter potentially restricts the exercise of governmental authority.

That distinction mirrors the constitutional spectrum developed in Part I.

F. The Difference Between Disclosure and Conflict Regulation Is Therefore Not Accidental

Taken together, the statutory framework suggests that Congress has historically drawn a line between **transparency** and **substantive restrictions on presidential decision-making**.

The distinction can be represented as follows:

Requirement	President	Subordinate executive officials
Public financial disclosure	Yes	Yes, where applicable

OGE review	Yes	Yes
Government-wide Standards of Conduct	Generally excluded	Yes
18 U.S.C. § 208	Not ordinarily applicable	Yes
Agency ethics programs	Special presidential framework	Yes
Ordinary executive disciplinary regime	Not equivalent	Yes

This is not itself a constitutional holding.

Congress could theoretically revise the framework.

But the existing statutory structure is **important historical and structural evidence** concerning how the political branches have understood Article II.

G. OGE Provides a Model of Professional Ethics Administration

The Office of Government Ethics occupies a particularly important position in the existing system.

Congress has assigned OGE substantial responsibilities concerning:

- government-wide ethics regulations;
- financial-disclosure review;
- ethics-program oversight;
- advisory opinions;
- compliance monitoring;
- investigations;
- corrective action; and
- recommendations concerning ethics violations.

Under 5 U.S.C. § 13122, however, OGE does not simply become an independent prosecutor of executive officials.

Its authority is deliberately structured.

Where OGE identifies potential violations, it can investigate, make findings, and recommend corrective or disciplinary action. But disciplinary authority generally remains with the relevant agency or executive authority.

And Congress expressly provides that OGE does not have authority to make findings of violations of criminal law.

That architecture is significant because it demonstrates a model of **independent professional ethics administration without complete institutional independence from the Executive Branch**.

This may be precisely the constitutional middle ground available for future reform.

H. OGE's Structure Is Especially Important After *Trump v. Slaughter*

The constitutional significance of OGE's structure becomes clearer when considered alongside the modern removal cases.

Congress could attempt to create a new "Independent Executive Ethics Commission" with authority to:

- investigate the President;
- determine ethics violations;
- issue binding orders;
- impose civil penalties;
- refer matters for prosecution;
- and operate independently of presidential removal.

But after *Free Enterprise Fund*, *Seila Law*, *Collins*, and especially *Trump v. Slaughter*, such a structure would face substantial Article II questions.

By contrast, Congress could strengthen OGE's existing functions while maintaining presidential control over the officials exercising executive power.

That difference is crucial.

Model 1 — Constitutional risk

Congress creates an independent enforcement officer who exercises executive power and cannot be removed by the President except for cause.

Model 2 — More constitutionally defensible

Congress establishes substantive standards, gives OGE investigative and reporting authority, requires procedural safeguards, and preserves presidential control over the ultimate executive enforcement authority.

The second model does not necessarily provide the same political insulation as an independent commission.

But that may be precisely why it is more compatible with Article II.

I. Criminal Conflict-of-Interest Law Is Much Broader for Subordinate Officers

The contrast becomes even more pronounced when examining the criminal provisions of 18 U.S.C. §§ 203–209.

These statutes regulate matters including:

- representation of private parties before the Government;
- compensation for government-related representation;
- outside employment;
- supplementation of federal salaries;
- post-government activities; and
- financial conflicts of interest.

Together they constitute a substantial federal criminal ethics framework.

But the President and Vice President are generally outside the ordinary coverage of these provisions.

That is not necessarily evidence that Congress believes presidential corruption is constitutionally permissible.

Rather, it reflects a deeper constitutional problem:

The Constitution gives the President powers that cannot simply be treated as ordinary delegated governmental functions.

A prohibition that prevents an employee of an agency from participating in a matter is relatively straightforward.

A prohibition that prevents the President from taking an action because of a financial interest potentially raises a different question:

Is Congress regulating an individual's financial conflict, or is Congress conditioning the exercise of presidential constitutional power?

That is the problem that Part III will need to confront.

J. The Existing System Suggests a Three-Tier Model

The statutory framework is best understood as creating three broad levels of federal ethics regulation.

Tier One — Subordinate executive officials

These officials are subject to the **most comprehensive ethics regime**, including:

- financial disclosure;
- criminal conflict-of-interest laws;
- Standards of Conduct;
- agency ethics programs;
- recusal requirements;
- restrictions on gifts and outside activities;
- administrative discipline.

Congress's constitutional authority is strongest here.

Tier Two — Vice President

The Vice President is subject to substantial ethics and disclosure requirements but occupies a constitutionally unusual position because of the office's Article I and Article II functions.

The Vice President therefore warrants a distinct constitutional analysis.

Tier Three — President

The President is subject to:

- financial disclosure;
- specific statutory ethics provisions;
- transparency requirements;
- certain generally applicable legal restrictions.

But the President is not simply subject to the entire regulatory apparatus governing ordinary executive employees.

That differentiation is constitutionally significant.

K. Inspectors General Demonstrate a Separate Enforcement Model

The Inspector General system deserves special treatment because it provides perhaps the most relevant existing example of Congress attempting to create **independent oversight within the Executive Branch**.

Inspectors General occupy a hybrid institutional position.

They are executive officers who perform functions that Congress has deliberately designed to promote independence from the agencies they oversee. Their statutory responsibilities include audits, investigations, waste and abuse detection, and reporting to agency leadership and Congress.

At the same time, the constitutional status of Inspectors General remains governed by Article II and the President's removal authority.

This makes Inspectors General particularly relevant to our project.

The question is not simply:

"Can Congress create an independent ethics investigator?"

The more precise question is:

"How much functional independence can Congress provide an executive ethics investigator without converting the investigator into an executive officer whom the President cannot constitutionally control?"

That is a substantially more tractable question.

It also explains why the removal-restriction research we conducted before beginning the executive-ethics memoranda is so important.

L. Ethics Enforcement Has Five Distinct Functions

The existing federal framework suggests that "enforcement" is too broad a term to be constitutionally useful.

An ethics institution may perform at least five distinct functions:

1. **Rulemaking** — establishing applicable ethics standards;

2. **Disclosure review** — examining financial and other required reports;
3. **Investigation** — gathering facts concerning possible violations;
4. **Adjudication** — determining whether a violation occurred;
5. **Sanction** — imposing a legal consequence for the violation.

The constitutional risk associated with these functions is not necessarily identical.

For example, Congress may have considerably greater latitude to require an office to **review and report on presidential financial disclosures** than to empower an independent official to **make binding determinations that the President violated federal law and impose a penalty**.

That distinction should become important when we eventually design legislation.

M. Congressional Oversight Is Not the Same as Executive Enforcement

Congress also possesses substantial oversight authority concerning executive ethics.

Congress may:

- request information;
- conduct hearings;
- subpoena records subject to applicable constitutional limitations;
- appropriate funds;
- legislate;
- require reports;
- investigate for legitimate legislative purposes.

But *Bowsher v. Synar* establishes an important boundary.

Congress cannot retain control over an officer charged with executing federal law in a manner that effectively permits the legislative branch to exercise executive power.

Accordingly, a congressional ethics committee might constitutionally **investigate and report** on executive ethics.

It would be much more problematic for Congress to create an official who:

- determines that an executive officer violated federal law;
- imposes a binding executive penalty;
- and remains answerable to Congress rather than the President.

The distinction between **oversight** and **execution** therefore needs to be maintained throughout the remainder of the memorandum.

N. Existing Federal Practice Supports a Hybrid Model

The statutory and regulatory framework ultimately points toward an institutional model that is neither:

complete presidential control

nor

complete independent enforcement.

Instead, federal ethics law already operates through a hybrid system:

Congress

→ establishes substantive standards and reporting requirements

OGE

→ develops regulations, reviews disclosures, provides guidance, investigates, and reports

Agency ethics officials

→ administer ethics programs and advise employees

Inspectors General

→ independently investigate waste, fraud, abuse, and misconduct within their statutory jurisdiction

Agency heads / President

→ retain ultimate executive authority over discipline and administration

Congress

→ retains oversight and legislative authority

That structure is important because it demonstrates that **independence can exist functionally without necessarily becoming constitutional independence from presidential control.**

O. Implications for Presidential Ethics Reform

The existing framework suggests several possible categories of reform.

Constitutionally strongest

Congress could strengthen:

- financial disclosure;

- disclosure accuracy;
- disclosure timing;
- public transparency;
- records retention;
- ethics reporting;
- OGE review;
- congressional notification;
- investigative procedures.

Constitutionally more uncertain

Congress could potentially establish:

- presidential conflict-of-interest rules;
- mandatory recusal;
- divestiture requirements;
- civil penalties;
- broader restrictions on outside financial interests.

But these require careful analysis of whether the particular requirement actually restricts presidential constitutional authority.

Constitutionally most difficult

Congress would face its greatest Article II obstacles in creating:

- an independent official with binding authority over the President;
- an executive ethics commission insulated from presidential removal;
- a congressional enforcement mechanism;
- criminal penalties for presidential official acts;
- or a statutory scheme that conditions the President's exercise of an exclusive Article II power upon approval from another officer.

The constitutional question therefore turns not simply upon **what ethical principle Congress wants to enforce**, but upon **how Congress structures the enforcement mechanism**.

Part III. Presidential and Vice-Presidential Ethics: Constitutional Limits on Applying Ordinary Requirements

A. The President Cannot Simply Be Treated as an Ordinary Executive Officer

The threshold issue is whether Congress may impose upon the President the same ethics obligations that apply to subordinate executive officers.

The answer is **not categorically yes or no**.

The President occupies a constitutionally distinct position because Article II itself establishes the office and vests the executive power in the President. Subordinate executive officers, by contrast, generally exercise authority delegated through statutes and presidential direction.

That distinction matters because an ethics requirement can have two very different constitutional effects.

A requirement imposed upon a subordinate officer may simply establish a statutory condition governing the exercise of delegated authority. The same requirement imposed upon the President may potentially restrict the exercise of power that the Constitution itself assigns to the President.

Accordingly, the relevant question is not:

Is the President subject to federal law?

He plainly is.

The relevant question is:

Does the particular law regulate the President's conduct in a permissible manner, or does it impermissibly control the exercise of constitutionally vested presidential authority?

That distinction should govern each category of ethics regulation considered below.

B. Financial Disclosure: The Clearest Case for Presidential Regulation

Financial disclosure represents the strongest case for congressional regulation of the President.

Congress expressly requires the President to file financial disclosure reports, and the D.C. Circuit has expressly recognized that the Ethics in Government Act requires public officials, **including the President**, to disclose specified financial information. *Lovitky v. Trump*, 949 F.3d 753, 755 (D.C. Cir. 2020).

This is important, but *Lovitky* should be characterized carefully.

The D.C. Circuit did **not** decide the constitutionality of imposing financial disclosure requirements upon the President. Nor did it hold that a private citizen could compel the President to correct a disclosure through mandamus. The court instead held that the plaintiff lacked the clear and indisputable entitlement necessary for mandamus relief.

Nevertheless, the opinion expressly recognized the statutory obligation itself.

The stronger proposition for our memorandum is therefore:

Congress has enacted, and the D.C. Circuit has recognized, a federal financial-disclosure obligation applicable to the President. Presidential status therefore does not categorically preclude congressional regulation of presidential financial transparency.

That conclusion is reinforced by the statutory structure discussed in Part II.

Constitutional significance

Disclosure primarily requires **information**, not a particular presidential decision.

It does not necessarily require the President to:

- sell property;
- recuse himself;
- surrender an office;
- refrain from issuing an order;
- decline to exercise the pardon power; or
- alter the manner in which he performs a constitutional function.

For that reason, financial disclosure is relatively easy to reconcile with Article II.

The constitutional argument becomes more difficult only when Congress attempts to use disclosure as the foundation for a coercive regime that directly controls presidential decision-making.

C. Disclosure and Enforcement Must Be Kept Separate

The distinction between the **existence of a disclosure duty** and the **available remedy for violating it** is particularly important.

The D.C. Circuit's *Lovitky* litigation illustrates this point. The court recognized the presidential disclosure obligation but rejected the plaintiff's attempt to use mandamus to compel correction of the President's reports.

The district court's later decision is also instructive: it explained that Congress had entrusted OGE and the Attorney General with oversight and enforcement functions rather than creating a private right of action for citizens to enforce the Act against the President.

That suggests a useful constitutional and institutional distinction:

Congress may establish a presidential disclosure obligation without necessarily providing every person—or every government institution—with authority to enforce that obligation directly against the President.

This becomes particularly significant once we reach criminal enforcement.

D. Financial Conflict-of-Interest Restrictions Present a Harder Question

The constitutional analysis changes materially when Congress moves from:

"Tell us what financial interests you possess."

to:

"You may not participate in this governmental matter because you possess that financial interest."

The first is principally transparency.

The second potentially restricts presidential action.

For subordinate executive officers, 18 U.S.C. § 208 provides a well-established criminal conflict-of-interest prohibition. The officer may not participate personally and substantially in a particular matter in which the officer has a specified financial interest, subject to statutory exceptions.

But Congress did not simply place the President and Vice President within that ordinary regime.

That omission matters.

It does **not** prove that Congress constitutionally could never enact a presidential conflict-of-interest statute. But it does establish that the existing federal system has deliberately declined to treat the President as equivalent to a subordinate executive employee.

That distinction is consistent with Article II.

E. A Presidential Conflict Statute Would Raise a Different Constitutional Question

Suppose Congress enacted a statute providing:

"The President shall not participate personally and substantially in any particular matter in which the President has a direct and substantial financial interest."

At first glance, that looks indistinguishable from § 208.

But constitutional analysis cannot stop there.

If the "particular matter" were a routine procurement decision, Congress would have a considerably stronger argument that the statute merely regulates financial conflicts surrounding administration of federal programs.

If the matter were:

- a presidential appointment;
- an exercise of prosecutorial discretion;
- a foreign-affairs decision;
- a military order;
- a veto;
- a pardon; or
- another exercise of exclusive presidential authority,

the constitutional question would become considerably harder.

The critical distinction is therefore not simply **financial interest versus no financial interest**.

It is:

Does the conflict rule regulate an ordinary governmental decision, or does it disable the President from exercising a constitutional power?

The Supreme Court has not supplied a comprehensive answer to that question.

Accordingly, the final memorandum should characterize mandatory presidential recusal as **constitutionally unresolved**, rather than either clearly permissible or clearly prohibited.

F. Recusal Is Constitutionally More Difficult Than Disclosure

Recusal deserves separate treatment because it is the point at which ethics regulation begins to affect presidential power directly.

A disclosure requirement says:

Disclose the interest.

A recusal requirement says:

Do not act.

That distinction is constitutionally meaningful.

A mandatory presidential recusal statute could potentially prevent the President from exercising authority that Article II vests exclusively in the President.

The argument in favor of congressional authority would nevertheless be substantial where the regulation concerns **personal financial interests rather than the substance of presidential policy**. Congress could argue that it is not attempting to reallocate executive power but merely ensuring that the President exercises that power without an impermissible personal financial conflict.

The counterargument is that Article II does not expressly condition presidential authority upon absence of financial conflicts and that Congress cannot impose conditions that effectively disable the President from exercising powers the Constitution gives him.

The Supreme Court has not squarely resolved that conflict.

Therefore:

Congress's authority to require presidential recusal is substantially less certain than its authority to require presidential disclosure.

That distinction should be preserved throughout the memorandum.

G. Divestiture Is Even More Intrusive

Divestiture presents an even more difficult constitutional problem.

A recusal requirement prevents the President from acting in a particular matter.

A divestiture requirement forces the President to **alter his personal financial affairs** as a condition of continuing to exercise governmental authority.

This creates at least three constitutional questions.

First

Does Congress possess authority to impose a financial condition upon continued occupancy of the presidency?

Second

Does forcing the President to sell or transfer property interfere with constitutionally protected personal or presidential interests?

Third

Can Congress indirectly accomplish through divestiture what it could not directly accomplish through regulation of presidential decision-making?

The constitutional case for divestiture is therefore weaker than the case for disclosure.

The existing federal system's choice to require disclosure while not imposing the ordinary § 208 regime on the President is relevant evidence, although it does not itself resolve the constitutional question.

H. The President's Constitutional Powers Create the Hardest Cases

The constitutional problem becomes most acute when an ethics rule touches an **exclusive presidential power**.

The classic examples include:

- the pardon power;
- the veto;
- appointment and removal authority;
- certain foreign-affairs functions;
- command of the armed forces.

Congress could presumably require the President to disclose a financial interest relating to a pardon recipient.

The much harder question is whether Congress could provide:

"The President shall not exercise the pardon power where the President possesses a financial interest in the recipient."

That statute would not merely require disclosure or regulate personal financial conduct.

It would impose a statutory condition upon an express constitutional power.

The Supreme Court's separation-of-powers doctrine makes that the most difficult category of ethics legislation.

The relevant principle is therefore:

Congress's authority to regulate presidential ethics is strongest when the regulation governs transparency and administration and weakest when it conditions the exercise of a power the Constitution commits exclusively to the President.

This is a conclusion from the structure of the authorities rather than a categorical Supreme Court holding.

I. Trump v. United States Complicates Criminal Enforcement

The constitutional difficulty increases further if Congress attempts to attach criminal penalties to presidential ethics violations.

Trump v. United States held that a former President enjoys absolute immunity from criminal prosecution for exercises of core constitutional authority and at least presumptive immunity for other official acts.

This does not mean that Congress cannot criminalize corruption generally.

Nor does it establish a general exemption from federal ethics statutes.

Instead, it creates a critical distinction:

The Government may be able to criminalize an underlying form of misconduct without necessarily being able to criminally prosecute a President for every official act through which that misconduct allegedly occurred.

For example, a statute might validly prohibit bribery.

But whether the Government could prosecute a former President for an official presidential act allegedly taken in exchange for a bribe would require a separate immunity analysis under *Trump v. United States*.

Thus, the constitutional analysis has at least two stages:

Stage 1: Was the underlying ethics prohibition constitutionally valid?

Stage 2: Is the particular enforcement mechanism constitutionally available against the President?

That distinction is indispensable.

J. Impeachment Does Not Exhaust Congress's Ethics Authority

One possible argument against presidential ethics legislation is that the Constitution already provides Congress with a mechanism for addressing presidential misconduct: impeachment.

That argument is too broad.

The existence of impeachment does not mean Congress is constitutionally prohibited from enacting other laws that affect presidential conduct.

Presidents are subject to numerous generally applicable laws, and Congress can impose disclosure and other legal requirements without converting every violation into an impeachable offense.

The better constitutional proposition is narrower:

Where Congress seeks to impose a consequence that effectively removes or disables the President for misconduct, the Constitution's impeachment provisions become highly relevant.

Congress therefore should not attempt to use an ordinary ethics statute as a substitute for the constitutional impeachment mechanism where the proposed sanction is functionally equivalent to removal.

This again supports the principle that **remedy matters as much as the underlying ethical rule**.

K. Civil Penalties Raise a Distinct Problem

Civil penalties fall somewhere between ordinary administrative enforcement and criminal punishment.

Congress might, for example, impose a monetary penalty for:

- failing to file a financial disclosure;
- knowingly falsifying information;
- refusing to comply with a statutory reporting requirement.

For subordinate officers, this presents relatively straightforward statutory-enforcement questions.

For the President, however, several issues arise.

1. Can a sitting President be subjected to a civil monetary penalty?

The Constitution does not expressly answer this question.

2. Who imposes the penalty?

A court?

The Attorney General?

OGE?

An independent ethics commission?

The answer affects the Article II analysis.

3. What conduct triggers the penalty?

A failure to file a disclosure is different from a presidential decision allegedly made because of a financial conflict.

4. Does the penalty interfere with presidential functions?

A nominal penalty imposed for a reporting violation may present little constitutional difficulty.

A penalty triggered by the President's exercise of an Article II power presents considerably greater concerns.

The constitutional analysis therefore cannot treat "civil penalty" as a single category.

L. The Vice President Should Be Regulated More Like an Executive Official—But Not Identically

The Vice President presents a substantially different constitutional case.

Unlike the President, the Vice President does not possess the executive power vested by Article II.

At the same time, the Vice President is not simply an ordinary executive officer.

The Constitution assigns the Vice President:

- the presidency of the Senate;
- the casting of tie-breaking votes;
- succession to the presidency; and
- other constitutionally specified functions.

Consequently, Congress likely has considerably more latitude to apply ordinary executive ethics rules to the Vice President.

But Congress cannot impose requirements that interfere with the Vice President's constitutional Senate functions.

The practical result is:

The constitutional case for applying ordinary financial-conflict and ethics rules to the Vice President is materially stronger than the case for applying them identically to the President.

The Vice President's position should therefore be treated separately rather than simply grouped with the President.

M. Presidential Ethics Regulation Is Best Evaluated by Function

The preceding analysis suggests that the constitutionality of a presidential ethics requirement depends upon at least four variables.

1. The regulated conduct

Is Congress regulating:

- disclosure;
- personal financial conduct;

- administrative decision-making;
- or an exclusive constitutional power?

2. The type of requirement

Is the requirement:

- informational;
- procedural;
- prohibitory;
- disabling;
- or punitive?

3. The enforcing institution

Is enforcement performed by:

- OGE;
- an agency ethics official;
- the Attorney General;
- a federal court;
- an Inspector General;
- an independent commission;
- or Congress itself?

4. The remedy

Does the law provide:

- disclosure;
- reporting;
- recommendation;
- corrective action;
- civil penalties;
- criminal prosecution;
- invalidation of an executive act;
- or removal from office?

The constitutional risk rises as these factors become more intrusive.

N. A Presidential Ethics Matrix

This produces the following preliminary assessment:

Requirement	Constitutional footing
Financial disclosure	Strong
Disclosure verification/review	Strong-moderate
Ethics reporting	Strong
OGE ethics advice	Strong
Investigation of presidential finance disclosures	Strong-moderate
Regulation of personal financial conduct	Moderate
General presidential conflict-of-interest statute	Unsettled
Mandatory recusal	Unsettled/potentially significant Art. II concern
Mandatory divestiture	Unsettled/significant concern
Restriction of exclusive Article II powers	Highly constitutionally sensitive
Civil penalty for reporting violation	Unsettled; highly dependent on structure
Criminal enforcement against unofficial conduct	Potentially permissible; subject to applicable law
Criminal enforcement against official conduct	Highly constrained
Independent ethics adjudicator insulated from presidential approval	Substantial Art. II concerns
Congressional adjudication/enforcement	Substantial separation-of-powers concern

Preliminary Conclusion to Part III

The Constitution does not place the President wholly outside Congress's ethics jurisdiction.

Indeed, federal law already establishes a direct presidential financial-disclosure obligation, demonstrating that Article II does not categorically prohibit Congress from regulating presidential ethics. *Lovitky* confirms the statutory application of the disclosure regime to the

President, although the case does not itself decide the constitutional limits of presidential ethics regulation.

The constitutional difficulty increases, however, as regulation moves from **transparency toward control**.

Congress possesses its strongest constitutional footing when it requires disclosure, establishes reporting obligations, creates procedural safeguards, and regulates subordinate officials.

Its authority becomes increasingly uncertain when it attempts to prohibit presidential conduct because of a financial interest, compel recusal or divestiture, impose penalties for presidential decisions, or otherwise condition the exercise of a constitutional power.

And after *Trump v. United States*, the availability of criminal enforcement must be analyzed separately from the validity of the underlying ethical rule.

The Vice President occupies an intermediate position. Congress has greater authority to subject the Vice President to ordinary ethics restrictions because the Vice President does not possess the executive power vested in the President. Nevertheless, the Vice President's constitutionally assigned Senate and succession functions prevent the office from being treated identically to an ordinary executive employee.

The resulting constitutional principle is:

The President is subject to federal ethics regulation, but not necessarily to the same ethics regime applicable to subordinate executive officers. The Constitution permits Congress to regulate presidential transparency and administration while imposing substantially greater limits on legislation that directly controls presidential decision-making, restricts exclusive Article II authority, or subjects presidential official conduct to coercive enforcement outside the constitutionally prescribed structure.

That conclusion gives us the answer to the first half of the memorandum's central question.

Part IV. Removal, Independence, and Enforcement of Executive Ethics Officials

A. Ethics Regulation and Ethics Enforcement Are Constitutionally Distinct

The constitutional validity of an ethics statute does not answer the separate question of **who may administer and enforce it**.

Congress might have unquestionable authority to establish a financial-disclosure requirement but considerably less authority to vest an independent executive officer with power to make binding determinations concerning compliance.

This distinction is particularly important because the modern Supreme Court's removal jurisprudence increasingly focuses on **presidential control over officers exercising executive power**.

The relevant question is therefore not simply:

Can Congress create an ethics requirement?

It is:

Can Congress create an institution with sufficient independence to enforce that requirement without depriving the President of constitutionally required control over executive officers?

The answer after *Trump v. Slaughter* is considerably more restrictive than it was when *Humphrey's Executor* was treated as controlling.

B. Myers Establishes the Baseline

The starting point remains *Myers v. United States*, 272 U.S. 52 (1926).

Myers recognized presidential authority to remove executive officers as an incident of the President's Article II responsibility to execute federal law. The Court reasoned that the President must have sufficient control over those who execute federal law in his name.

The modern Court has now reaffirmed that principle in exceptionally strong terms.

Trump v. Slaughter described *Myers* as holding that the Constitution grants the President "general administrative control" over those executing federal law, including the authority to remove executive officers.

The Court's reasoning was explicitly structural:

Presidential accountability requires presidential control.

That proposition has substantial consequences for any proposed ethics-enforcement institution.

C. *Humphrey's Executor* No Longer Provides a General Exception

For decades, *Humphrey's Executor v. United States*, 295 U.S. 602 (1935), provided the principal counterweight to *Myers*.

The Court upheld statutory removal restrictions protecting FTC Commissioners because it characterized the FTC as performing predominantly quasi-legislative and quasi-judicial functions rather than exercising executive power.

That framework subsequently became the foundation for the concept of the "independent agency."

But *Trump v. Slaughter* fundamentally changed the landscape.

The Court concluded that *Humphrey's* framework had not survived subsequent constitutional developments and expressly **overruled the decision** to the extent it permitted insulation from presidential removal for officers exercising executive power.

The Court's reasoning is unusually important for our purposes:

The constitutional problem was not simply that the FTC exercised "important" authority. It was that the FTC exercised **executive power** while its commissioners were insulated from presidential control.

This means that the old analytical shortcut—

"Congress can protect an ethics official because ethics requires independence"

—is no longer sufficient.

Congress must instead establish why the officer's **constitutional function** permits insulation from presidential removal.

D. *Trump v. Slaughter* Creates a Powerful New Rule

The Court's holding is straightforward:

Officers who fall within the President's general administrative control must be removable by the President at will.

The FTC presented an especially strong case for independence because its Commissioners:

- promulgated rules having the force of law;

- investigated private parties;
- enforced federal statutes;
- conducted administrative adjudications; and
- brought civil litigation on behalf of the United States.

The Court held that those functions were plainly executive.

That is enormously relevant to an ethics commission.

A hypothetical federal ethics commission possessing authority to:

- promulgate binding ethics regulations;
- investigate executive officials;
- issue compulsory process;
- adjudicate violations;
- impose civil penalties;
- and litigate enforcement actions

would look **at least as executive** as the FTC described in *Slaughter*.

Consequently, insulating its leadership from presidential removal would now face a formidable constitutional objection.

E. *Slaughter* Does Not Mean Every Ethics Official Must Be Removable at Will

The holding must nevertheless be stated carefully.

The Court expressly left some questions unresolved.

It noted that not every congressionally created office necessarily exercises executive power and specifically left open questions involving entities such as the Federal Reserve and non-Article III adjudicatory bodies.

Thus, *Slaughter* does **not** establish:

Every federal officer must be removable at will.

It establishes something narrower and more useful:

An officer exercising executive power that falls within the President's general administrative control must be removable by the President at will, absent a constitutionally sufficient basis for treating the office differently.

That distinction matters enormously for Inspectors General.

F. Inspectors General Are an Especially Interesting Case

Congress has deliberately designed Inspectors General to operate with a degree of independence from the agencies they investigate.

The Inspector General Act provides that an Inspector General appointed by the President may be removed by the President, but requires the President to communicate the reasons for removal or transfer to both Houses of Congress.

This structure is unusual.

Congress has **not** historically attempted to make Inspectors General entirely independent of the President.

Instead, it has attempted to create:

presidential appointment + presidential removal + congressional transparency regarding removal.

That distinction is potentially crucial after *Slaughter*.

The statutory requirement that the President provide Congress with reasons for an Inspector General's removal is materially different from a statute saying:

"The President may remove an Inspector General only for inefficiency, neglect of duty, or malfeasance."

The former requires **transparency**.

The latter creates a substantive **restriction on presidential removal authority**.

Those should not be treated as constitutionally equivalent.

G. Congressional Notification Is a Particularly Durable Form of Independence

The existing Inspector General model therefore suggests a potentially powerful legislative design principle:

Congress may be able to protect the independence of executive oversight officials more safely through transparency requirements than through removal restrictions.

Congress can require the President to:

- provide written reasons for removal;
- notify Congress before removal;
- identify whether the removal relates to an ongoing investigation;
- provide specified information concerning the circumstances;
- submit reports concerning vacancies;
- and maintain continuity procedures.

Those mechanisms do not necessarily prevent the President from removing the official.

Instead, they make removal **visible and politically accountable**.

That is considerably easier to reconcile with *Myers* and *Slaughter* than a for-cause removal restriction.

H. The IG Act's "Independent and Objective" Mission Does Not Necessarily Create Constitutional Independence

This is another distinction worth emphasizing.

Congress has deliberately characterized Inspectors General as providing an **independent and objective** means of investigating and reporting on agency operations.

But statutory "independence" does not necessarily mean constitutional independence from the President.

An Inspector General can be:

- operationally independent;
- professionally independent;
- protected against interference with investigations;
- required to report findings directly to Congress;
- prohibited from having programmatic responsibilities;

while remaining constitutionally subject to presidential removal.

This is potentially the most important institutional lesson from the removal cases.

Independence of function is not necessarily independence of constitutional control.

Congress has considerable room to maximize the former without necessarily violating Article II.

I. *Free Enterprise Fund* Rejects "Double Insulation"

Free Enterprise Fund v. Public Company Accounting Oversight Board, 561 U.S. 477 (2010), reinforces the principle.

The Court invalidated a structure in which PCAOB members enjoyed removal protection from the SEC while the SEC Commissioners themselves enjoyed removal protection from the President.

That created **two layers of removal protection** between the President and officers exercising executive authority.

The constitutional problem was that the President lacked sufficient control over those executing federal law.

The case therefore supplies a particularly important warning for ethics legislation:

Congress should be extremely cautious about constructing multiple layers of protected officials between the President and an ethics-enforcement officer.

An architecture such as:

President → protected OGE Director → protected Ethics Commission → protected Ethics Adjudicator

would be particularly vulnerable.

By contrast:

President → OGE Director → ethics investigators

with statutory protections against interference in individual investigations presents a materially different constitutional structure.

J. *Seila Law* Reinforces the Presidential-Control Principle

Seila Law LLC v. CFPB, 591 U.S. 197 (2020), further strengthened presidential control over executive officers.

The Court held that a single Director exercising substantial executive authority could not be protected by a for-cause removal provision.

The decision emphasized that Article II vests executive power in the President and requires presidential accountability for executive administration.

Importantly, *Seila Law* did not simply ask whether the agency was "independent."

It examined:

- the nature of the officer's authority;
- the structure of the office;
- whether the President could supervise the official;
- and whether the removal restriction interfered with presidential control.

That functional inquiry remains useful even after *Slaughter*.

K. *Morrison v. Olson* Has Lost Much of Its Former Force

Morrison v. Olson, 487 U.S. 654 (1988), upheld restrictions on removal of the independent counsel.

The Court applied a functional test asking whether the restriction impermissibly interfered with the President's constitutional functions.

Morrison remains important historically, but its analytical force has been significantly diminished by the modern removal cases.

Most importantly, *Trump v. Slaughter* itself explained that *Morrison* recognized that the FTC's functions had at least some executive character even when *Humphrey's Executor* had treated them otherwise.

The doctrinal trend is therefore unmistakable:

Myers → Morrison → Free Enterprise Fund → Seila Law → Collins → Trump v. Slaughter

has progressively shifted the focus toward **presidential control over executive power**.

For our purposes, *Slaughter* should be treated as the controlling modern endpoint.

L. *Collins v. Yellen* Separates Unconstitutional Structure From Remedy

Collins v. Yellen, 594 U.S. 220 (2021), is particularly important because it distinguishes between:

1. an unconstitutional removal restriction; and

2. the consequences of an official's actions while protected by that restriction.

The Court held that the statutory restriction on removal of the Federal Housing Finance Agency's director violated separation of powers, but it rejected the argument that every action taken by the improperly protected official was automatically void.

That principle has significant implications for ethics enforcement.

Suppose Congress enacted an ethics regime that improperly insulated an ethics officer from presidential removal.

That would not necessarily mean every investigation, report, or action taken by the officer is automatically invalid.

The constitutional defect and the remedy are separate questions.

This is useful both doctrinally and practically because it suggests that courts may sever an unconstitutional removal restriction rather than destroy an entire ethics regime.

M. *Lucia* Adds an Appointments Clause Dimension

The institutional design problem does not end with removal.

Lucia v. SEC, 585 U.S. 237 (2018), demonstrates that the Constitution also regulates **who may exercise significant federal adjudicatory authority**.

The Supreme Court held that SEC administrative law judges were "Officers of the United States" and therefore had to be appointed in conformity with the Appointments Clause.

The implication for ethics enforcement is straightforward.

If Congress creates an ethics adjudicator with authority to issue binding governmental decisions, that officer may be constitutionally significant enough to trigger the Appointments Clause.

Congress therefore cannot simply establish:

"An Ethics Commission shall appoint hearing officers who may determine whether presidential officials violated federal law."

The constitutional analysis must determine whether those adjudicators are officers, who appoints them, and what supervisory authority exists.

N. The Constitutional Problem Is Greatest When Ethics Officials Exercise Coercive Executive Power

The cases collectively suggest a hierarchy.

Lower constitutional risk

An ethics institution that:

- receives disclosures;
- provides confidential advice;
- conducts audits;
- identifies potential conflicts;
- issues nonbinding recommendations;
- publishes reports.

Moderate constitutional risk

An institution that:

- conducts investigations;
- subpoenas documents;
- compels testimony;
- makes formal findings;
- refers matters for enforcement.

Highest constitutional risk

An institution that:

- issues binding orders;
- imposes civil penalties;
- prosecutes violations;
- adjudicates executive misconduct;
- controls executive personnel;
- or otherwise exercises coercive executive authority

while being insulated from presidential supervision.

The FTC in *Slaughter* fell squarely within the final category.

That is why *Slaughter* matters so much to the ethics project.

O. The Better Constitutional Model Is "Independent Investigation, Presidential Accountability"

The jurisprudence points toward an institutional model that preserves **investigative independence without constitutional insulation from presidential control**.

That could look like:

Congress

Defines:

- prohibited conduct;
- disclosure obligations;
- investigative authority;
- reporting requirements;
- procedural safeguards;
- appropriations.

OGE

Administers:

- government-wide ethics regulations;
- financial-disclosure review;
- ethics guidance;
- compliance monitoring.

Ethics investigators / Inspectors General

Conduct:

- independent fact-finding;
- audits;
- investigations;
- referrals;
- reports to Congress.

President

Retains:

- appointment;

- removal;
- ultimate executive supervision.

Congress

Retains:

- oversight;
- hearings;
- appropriations;
- legislative remedies;
- impeachment where appropriate.

This is substantially different from an independent commission possessing final coercive authority.

P. Could Congress Protect an Ethics Investigator From Interference?

Probably—but this is where legislative drafting becomes important.

Congress could plausibly prohibit an agency head from:

- directing the outcome of a particular investigation;
- suppressing an investigative report;
- altering factual findings;
- retaliating against investigators;
- interfering with access to records;
- retaliating against whistleblowers.

Those provisions regulate **how an investigation is conducted**.

They do not necessarily prevent the President from removing the official responsible for conducting it.

That distinction is potentially constitutionally valuable.

Congress could therefore create significant practical independence without formally restricting presidential removal.

Q. Could Congress Make an Inspector General Removable Only for Cause?

After *Trump v. Slaughter*, this is considerably harder to defend.

The strongest argument for such a provision would be that Inspectors General are oversight officials rather than ordinary policymakers and therefore require independence from the political leadership they investigate.

There is substantial functional logic to that argument.

But *Slaughter* makes functional importance insufficient where the officer exercises executive power.

Inspectors General:

- investigate federal programs;
- audit executive agencies;
- oversee compliance with federal law;
- conduct administrative investigations;
- issue reports;
- and, depending upon statutory authority, exercise law-enforcement-related powers.

Those activities are not obviously outside the executive power.

Indeed, *Slaughter* specifically emphasized that investigation and enforcement are central characteristics of executive power.

Accordingly, **a blanket for-cause removal restriction for presidentially appointed Inspectors General now presents a substantial constitutional risk.**

The stronger legislative strategy would be to retain presidential removal while dramatically strengthening the statutory consequences and transparency surrounding that removal.

R. The 2025 IG Act Proposal Is an Interesting Test Case

Congress's recent consideration of an IG Act proposal makes this issue concrete.

The proposed **Integrity in Government Act of 2025** would have imposed for-cause removal restrictions upon Inspectors General appointed by the President, while also creating an Inspector General for the Executive Office of the President.

That proposal is especially interesting in light of *Slaughter*.

If the legislation were enacted in substantially the proposed form, the constitutional question would be whether Inspectors General fall within the category of officers exercising executive power who, under *Slaughter*, must remain removable at will.

The answer is not necessarily identical for every Inspector General because the statutory functions and appointing structures vary.

But as a general proposition, **a blanket for-cause restriction covering presidentially appointed Inspectors General would now be significantly more vulnerable than it appeared under the pre-*Slaughter* doctrine.**

This is precisely the sort of issue that should be addressed in any legislation emerging from our project.

S. The Executive Office of the President Creates an Additional Problem

An Inspector General for the Executive Office of the President presents a particularly sensitive constitutional case.

The President's immediate constitutional and administrative staff are unusually close to the President himself.

An EOP Inspector General would potentially investigate:

- White House operations;
- presidential advisers;
- executive orders;
- presidential personnel decisions;
- policy implementation;
- sensitive communications;
- and potentially matters implicating presidential privilege.

That does not make oversight impossible.

But it increases the constitutional stakes because Congress would be creating an investigative institution operating directly inside the President's constitutional sphere.

A more defensible model would therefore emphasize:

- financial disclosure;
- auditing;
- administrative misconduct;
- procurement;
- contracting;
- waste and abuse;
- statutory compliance;

- reporting to Congress;

while avoiding any statutory authority permitting the Inspector General to **countermand presidential decisions**.

T. Ethics Enforcement Cannot Become a Legislative Veto

This leads to one of the most important constitutional boundaries.

Congress can investigate the Executive.

Congress can legislate ethical standards.

Congress can require reporting.

Congress can create executive officers who investigate violations.

But Congress cannot give itself—or an officer answerable to Congress—the final authority to determine whether the President may exercise an Article II power.

That would risk converting oversight into execution.

Bowsher v. Synar, 478 U.S. 714 (1986), provides the fundamental structural warning: Congress cannot retain control over an officer charged with executing federal law in a way that permits the legislative branch to exercise executive power.

An ethics system must therefore avoid a structure in which:

Congress investigates → Congress adjudicates → Congress orders the President to comply.

The constitutional alternative is:

Congress legislates → executive ethics officials investigate → executive officials report → Congress oversees → courts resolve legal disputes.

That preserves institutional separation.

U. *Trump v. Cook* Reinforces the Broader Current Direction

The Supreme Court's June 2026 disposition in *Trump v. Cook* is worth noting, though it should not be overstated.

The Court denied the Government's application to stay a district court injunction concerning President Trump's attempted removal of Federal Reserve Governor Lisa Cook.

That order did **not** finally resolve the merits of the removal question.

Accordingly, *Cook* should not be cited as a substantive holding equivalent to *Slaughter*.

It is nevertheless relevant to the jurisprudential docket because the Court itself had previously linked the case to the broader removal dispute, and its treatment of removal restrictions remains an important developing area.

The proper hierarchy is therefore:

- *Trump v. Slaughter* — controlling merits precedent;
- *Trump v. Cook* — developing litigation and potentially significant future precedent, but not presently a merits holding on the constitutional validity of the removal restriction.

That distinction should be preserved in the final memorandum.

V. The Post-*Slaughter* Constitutional Model

The removal cases now support a considerably clearer framework.

Congress may safely pursue:

1. Transparency

- mandatory reporting;
- disclosure;
- removal notices;
- investigative reports;
- congressional notification.

2. Investigative independence

- protected investigative procedures;
- direct reporting channels;
- anti-retaliation provisions;
- access to records;
- protection against suppression or alteration of reports.

3. Professional independence

- qualifications;
- tenure norms;
- nonpartisan staffing;
- merit-based appointment procedures;
- ethical standards for investigators.

Congress faces greater constitutional risk with:

4. Removal restrictions

- for-cause protection for executive officers exercising executive power;
- multiple layers of removal protection;
- independent commissions insulated from presidential supervision.

5. Coercive enforcement

- binding executive orders;
- civil penalties;
- final adjudication of executive misconduct;
- prosecutorial authority insulated from the President.

6. Legislative control

- congressional appointment of executive enforcement officials;
- congressional direction of particular investigations;
- congressional adjudication of violations;
- legislative vetoes over executive enforcement.

W. Preliminary Conclusion to Part IV

The modern removal jurisprudence materially changes the institutional design question.

Before *Trump v. Slaughter*, Congress could plausibly rely upon *Humphrey's Executor* to argue that certain independent executive bodies could constitutionally exercise substantial executive authority while their leadership remained protected from presidential removal.

That argument is now substantially weakened.

Trump v. Slaughter expressly overruled *Humphrey's Executor* and held that the FTC's for-cause removal protection violated separation of powers because the Commission exercised executive power while insulated from presidential control.

The consequence for federal ethics legislation is significant:

Congress should not attempt to solve executive ethics problems by simply creating an independent enforcement commission insulated from presidential removal.

That model is constitutionally precarious.

The stronger approach is to distinguish **independence of investigation from independence of constitutional control**.

Congress can plausibly create ethics officials who are:

- professionally independent;
- independently investigative;
- directly accountable to Congress through reporting;
- protected against interference in particular investigations;
- subject to robust transparency requirements;

while preserving the President's ultimate authority to appoint and remove executive officers.

The Inspector General Act already provides a partial model: the President retains removal authority, while Congress receives a written explanation of removal or transfer.

That architecture may be substantially more durable after *Slaughter* than a statutory for-cause regime.

Part V. Constitutional Application to Specific Executive Ethics Requirements

A. Introduction: From General Doctrine to Specific Requirements

The preceding Parts establish two propositions that must be held together.

First, **Congress possesses substantial authority to regulate executive ethics**. The federal government already requires extensive financial disclosure, conflict-of-interest restrictions, ethics reporting, and investigative oversight for executive officers. Congress has also expressly subjected the President and Vice President to public financial-disclosure requirements. 5 U.S.C. § 13103(f)(1)-(2).

Second, **the President is not constitutionally interchangeable with a subordinate executive officer**. Article II's vesting of executive power in the President imposes structural limits when an ethics requirement moves beyond transparency and administration into direct control over presidential decision-making.

The constitutional question should therefore be approached requirement by requirement.

The following conclusions use four categories:

- **Clearly permissible** — substantial constitutional authority supports the requirement.
- **Probably permissible** — the requirement is likely constitutional, although relevant precedent is incomplete.
- **Constitutionally uncertain** — substantial arguments exist on both sides and the Supreme Court has not squarely resolved the question.
- **Probably impermissible** — the requirement would likely collide with an established constitutional limitation.

The categories concern **constitutional authority**, not policy wisdom.

B. Financial Disclosure

Conclusion: Clearly permissible

Financial disclosure is the strongest example of permissible congressional regulation of the President.

Congress expressly requires the President and Vice President to file public financial disclosure reports. 5 U.S.C. § 13103(f).

The requirement does not itself prevent the President from exercising any constitutional power. It requires the President to provide information concerning financial interests and thereby facilitates transparency, public accountability, and congressional oversight.

This distinction is important.

Congress is not telling the President:

"You may not exercise this power."

It is telling the President:

"You must disclose the financial circumstances under which you exercise your powers."

That is a materially less intrusive form of regulation.

The D.C. Circuit's decision in *Lovitky v. Trump*, 949 F.3d 753 (D.C. Cir. 2020), provides additional support. Although *Lovitky* did not adjudicate the constitutionality of presidential disclosure requirements, the court recognized that the Ethics in Government Act imposes disclosure obligations upon the President and addressed a litigant's attempt to compel compliance through mandamus.

The constitutional case for disclosure is therefore unusually strong.

Legislative implication

Congress could likely strengthen:

- disclosure frequency;
- disclosure specificity;
- electronic filing;
- public accessibility;
- certification;
- correction procedures;
- retention requirements;
- OGE review;
- reporting of noncompliance.

The principal constitutional danger would arise only if Congress attempted to transform the disclosure regime into a mechanism for **controlling the President's subsequent official decisions**.

C. Financial Conflict-of-Interest Restrictions

Conclusion: Constitutionally uncertain

The constitutional analysis becomes substantially harder when Congress moves from disclosure to prohibition.

Section 208 provides the clearest example. It prohibits executive officers and employees from participating personally and substantially in particular matters in which they possess specified financial interests.

The statute is an exceptionally strong restriction for subordinate officers.

But Congress did not simply include the President within the ordinary executive-employee regime.

That omission should not be mistaken for a judicial determination that Congress **could never** impose a presidential conflict-of-interest rule. There is no Supreme Court decision squarely holding that.

Instead, the constitutional issue is whether the particular conflict rule regulates:

1. the President's **personal financial conduct**, or
2. the President's **exercise of constitutionally vested governmental authority**.

The distinction becomes particularly important where the affected governmental action falls within the President's exclusive constitutional authority.

Example

Congress could probably prohibit the President from using the presidency to enrich a privately owned company through an ordinary procurement transaction.

It is much less clear that Congress could enact:

"The President shall not exercise the pardon power whenever the President possesses a financial interest in the recipient."

The latter provision directly conditions an express Article II power.

The safest conclusion is therefore that **Congress possesses substantial authority to regulate presidential financial conflicts, but the constitutionality of any particular restriction depends heavily upon the governmental power being regulated.**

D. Mandatory Recusal

Conclusion: Constitutionally uncertain

Recusal represents the point at which ethics regulation begins to directly control presidential conduct.

For ordinary executive employees, recusal is a conventional means of preventing conflicts. The § 208 regime effectively operates in this manner.

For the President, however, a mandatory recusal requirement potentially creates a different constitutional problem.

A statute requiring recusal from an ordinary administrative matter is substantially easier to defend than one requiring recusal from:

- appointments;
- pardons;
- military decisions;
- foreign affairs;
- vetoes;
- or other exclusive presidential functions.

The former may be characterized as a regulation of personal financial conflicts.

The latter risks becoming a congressional limitation upon the exercise of Article II authority.

The strongest constitutional formulation would therefore be:

Congress may likely require presidential recusal from ordinary administrative matters where a substantial personal financial conflict exists, but mandatory recusal from the exercise of exclusive constitutional powers presents a serious and unresolved Article II question.

E. Mandatory Divestiture

Conclusion: Constitutionally uncertain, with greater risk than recusal

Divestiture is more intrusive than disclosure or recusal because it regulates the President's **ownership of property itself**.

Congress could argue that divestiture is merely a prophylactic ethics measure: eliminating financial interests eliminates conflicts before they arise.

The President could respond that Congress is effectively imposing a financial condition upon continued exercise of the presidency.

The constitutional question therefore becomes particularly difficult where divestiture is mandatory rather than voluntary.

A carefully tailored statute requiring divestiture of **specific interests directly implicated by the President's governmental responsibilities** might have a stronger constitutional basis than a blanket requirement that the President liquidate all potentially conflicting assets.

The distinction between:

"You must eliminate this particular conflict"

and

"You must restructure your private financial affairs according to Congress's preferred model"

could prove important.

The latter more directly implicates presidential independence and potentially property interests.

F. Gifts and Outside Income

Conclusion: Probably permissible, subject to Article II application

Congress has substantial authority to regulate gifts and compensation received by executive officials.

The constitutional rationale is particularly strong where the prohibition prevents bribery or improper financial influence.

Indeed, bribery restrictions are fundamentally different from a statute attempting to regulate the President's policy choices. Congress possesses obvious authority to criminalize corruption in federal government.

The difficult question is whether the same restrictions may be applied **identically to the President**.

A prohibition against receiving money in exchange for an official act is constitutionally stronger than a prohibition against receiving a gift that merely creates an appearance of impropriety.

The first targets corruption.

The second is primarily an ethics rule.

Congress likely possesses authority to regulate the latter as well, but the further the regulation moves toward controlling ordinary personal conduct unrelated to the exercise of governmental power, the more careful the statutory design should become.

G. Nepotism and Self-Dealing

Conclusion: Probably permissible

Congress has substantial authority to prohibit executive officials from using governmental authority to confer personal financial benefits upon themselves or closely related persons.

This category differs from a general conflict-of-interest prohibition because the government's interest is particularly strong in preventing officials from converting public authority into private gain.

The constitutional case is strongest where the statute targets:

- contracts;
- appointments to subordinate positions;
- grants;
- subsidies;
- procurement;
- official expenditures;
- or other matters where Congress has clear constitutional authority to establish rules governing federal administration.

The President's unique constitutional powers remain the limiting consideration.

Congress would have a stronger case regulating **presidential contracting and procurement** than regulating the President's appointment of a Cabinet officer pursuant to Article II.

Again, the constitutional line is functional rather than categorical.

H. Ethics Investigations

Conclusion: Clearly permissible, subject to institutional design

Congress may establish mechanisms for investigating executive ethics violations.

Indeed, the Inspector General system demonstrates that Congress has long exercised this authority.

The key constitutional distinction is between:

investigating and reporting

and

bindingly controlling the President.

Congress may require an executive ethics institution to:

- examine financial disclosures;
- investigate potential misconduct;
- interview witnesses;
- review records;
- audit programs;
- issue findings;
- report to Congress;
- make recommendations.

The constitutional problem arises if that institution receives authority to **countermand presidential action**.

This distinction also survives the post-*Slaughter* removal doctrine.

Congress can design substantial investigative independence without necessarily making the investigator constitutionally independent of presidential control.

I. Independent Ethics Investigators

Conclusion: Probably permissible if presidential removal authority is preserved

This is perhaps the most important institutional conclusion of the memorandum.

After *Trump v. Slaughter*, Congress should be extremely cautious about attempting to create an ethics investigator with both:

1. substantial executive authority; and
2. protection from presidential removal.

The Supreme Court's June 29 decision held the FTC's removal restriction unconstitutional and expressly overruled *Humphrey's Executor*. The Court's current docket confirms *Slaughter* as a merits decision issued June 29, 2026.

That does **not** mean Congress must choose between:

- a completely presidentially controlled ethics office, or
- a constitutionally insulated independent commission.

There is a third option:

independent investigative authority with presidentially controlled personnel.

The Inspector General Act offers a useful model. The President retains removal authority over presidentially appointed Inspectors General, but the President must communicate the reasons for removal or transfer to Congress. 5 U.S.C. § 403(b).

That is a crucial distinction.

Congress can impose **accountability surrounding removal** without necessarily imposing **substantive restrictions upon removal**.

J. Civil Penalties

Conclusion: Constitutionally uncertain

Civil penalties raise a more complicated question.

A statute imposing a modest civil penalty for:

- failing to file a required disclosure;
- knowingly submitting false information;
- failing to correct a disclosure;
- or obstructing an authorized ethics investigation

is easier to defend than a penalty imposed because the President made a particular governmental decision.

The former regulates **compliance with a statutory administrative obligation**.

The latter potentially penalizes the President for exercising constitutional authority.

The identity of the adjudicator also matters.

A penalty imposed through ordinary judicial proceedings presents a different constitutional issue from one imposed by an independent executive commission insulated from presidential control.

The safest legislative design would therefore make **courts the ultimate adjudicators of coercive penalties**, rather than giving an independent executive ethics commission final authority to punish the President.

K. Criminal Enforcement

Conclusion: Probably permissible as to prohibited personal conduct; highly constrained as to official acts

Congress unquestionably possesses authority to criminalize corruption.

The more difficult question is how that criminal law operates when applied to the President.

Trump v. United States requires a distinction between official and unofficial conduct.

Consequently, Congress could constitutionally criminalize conduct such as:

- bribery;
- falsification of financial disclosures;
- obstruction;
- destruction of evidence;
- unlawful personal financial transactions.

But the application of criminal law to an **official presidential act** is considerably more complicated.

The Supreme Court's presidential-immunity doctrine means that the Government cannot simply characterize every alleged ethics violation as an ordinary crime and prosecute the President regardless of the underlying official conduct.

Thus:

The validity of an ethics statute and the availability of criminal prosecution are separate constitutional questions.

This is particularly important for legislation designed to survive changes in administration.

A statute should not assume that because Congress has validly prohibited conduct, every resulting presidential action is automatically prosecutable.

L. Congressional Enforcement

Conclusion: Probably impermissible where Congress exercises executive power directly

Congress possesses extensive oversight authority.

It may:

- investigate;
- subpoena;
- hold hearings;
- require reports;
- legislate;
- appropriate funds;
- and refer matters to appropriate authorities.

But Congress cannot transform itself into the executive enforcement authority.

The distinction established in *Bowsher v. Synar* remains critical.

A congressional committee could investigate an alleged presidential ethics violation.

It should not, however, be given statutory authority to:

1. adjudicate the violation;
2. impose a binding executive penalty; and
3. command the President to comply.

That would create a serious separation-of-powers problem because Congress would be exercising executive power.

The stronger design is:

**Congress investigates and oversees → executive ethics institution investigates and enforces
→ courts adjudicate legal disputes.**

M. Presidential Removal of Ethics Officials

Conclusion: At-will presidential removal is now the constitutionally safest model for executive ethics officers exercising executive power

This conclusion follows directly from *Trump v. Slaughter*.

The Court's 2026 decision substantially narrows the ability of Congress to insulate executive officers from presidential removal.

Accordingly, legislation creating an ethics officer with:

- investigative authority;
- enforcement authority;
- rulemaking authority;
- adjudicatory authority;
- or other executive powers

should generally preserve presidential removal authority.

But that does **not** mean Congress must leave the President unconstrained.

Congress can instead require:

- written reasons for removal;
- advance notice;
- notification to Congress;
- public disclosure of removal;
- reporting concerning ongoing investigations;
- appointment qualifications;
- fixed terms;
- professional independence;
- anti-retaliation rules;
- direct congressional reporting.

The Inspector General model is particularly instructive because the President's removal authority coexists with statutory transparency requirements.

One important caveat

Trump v. Cook demonstrates that *Slaughter* does not necessarily establish a universal rule that every statutory removal restriction is unconstitutional.

The Supreme Court's 2026 treatment of Federal Reserve Governor Lisa Cook reflects the special constitutional status the Court attributed to the Federal Reserve and its historical independence. The Court's docket confirms *Cook* as a separate June 29, 2026 decision.

That suggests that *Slaughter* should not be converted into an overly broad proposition that **every** federal officer exercising executive power must necessarily be removable at will.

For ordinary executive ethics officials, however, there is little reason to assume that they would receive the special treatment afforded to the Federal Reserve.

N. Vice Presidential Regulation

Conclusion: Probably permissible to apply ordinary ethics requirements, subject to constitutional functions

The Vice President presents a stronger case for ordinary ethics regulation than the President.

The Vice President does not receive the executive power vested in the President by Article II.

At the same time, the Vice President possesses constitutionally specified functions, most importantly:

- presiding over the Senate;
- casting tie-breaking votes;
- succeeding to the presidency;
- and potentially exercising presidential authority under the Twenty-Fifth Amendment.

Congress therefore has substantial authority to apply ordinary ethics requirements to the Vice President, particularly when the Vice President is acting in an executive capacity.

The constitutional analysis becomes more complicated when an ethics rule interferes with a constitutional Senate function.

For example, Congress would have a stronger basis for regulating the Vice President's financial conflict in administering an executive program than for prohibiting the Vice President from casting a constitutionally authorized Senate vote.

The Vice President should consequently be treated as a **distinct constitutional category**, not merely as another executive employee and not identically with the President.

O. A Constitutionally Durable Federal Ethics Model

The analysis thus points toward a model that is somewhat different from a conventional "independent ethics commission."

A constitutionally durable system would instead consist of **four layers**.

Layer One — Congress

Congress establishes:

- substantive ethics requirements;
- disclosure obligations;

- investigative authority;
- procedural safeguards;
- reporting requirements;
- penalties authorized by law.

Layer Two — OGE / Executive Ethics Administration

OGE administers:

- disclosure;
- ethics regulations;
- guidance;
- compliance;
- professional ethics standards.

Layer Three — Independent Investigative Oversight

Inspectors General or similarly structured investigators:

- investigate allegations;
- audit compliance;
- protect evidence;
- report findings;
- refer potential violations.

They would be operationally independent but remain constitutionally subject to presidential control.

Layer Four — Courts

Courts provide the ultimate adjudication of contested legal consequences where judicial resolution is constitutionally appropriate.

P. The Strongest Reform Is Not Necessarily the Most Aggressive Reform

This is perhaps the most important policy conclusion emerging from the constitutional analysis.

If Congress wants an ethics regime that will **survive judicial review**, it should not necessarily attempt to maximize formal independence.

The more constitutionally durable strategy may be to maximize:

transparency + investigative independence + procedural regularity + congressional oversight + judicial review

while avoiding:

removal insulation + legislative enforcement + executive vetoes + independent coercive authority over the President.

That approach may look less aggressive institutionally, but it is actually more likely to survive the modern Article II doctrine.

And that matters for the project's larger objective.

A statute that creates an enormously powerful "independent" ethics commission but is struck down under *Slaughter* would accomplish considerably less than a somewhat more restrained system that can actually operate.

Part V Conclusion

The Constitution permits Congress to regulate presidential and vice-presidential ethics, but it does not require that the President and Vice President be treated identically to subordinate executive officers. Congress's authority is strongest with respect to disclosure, transparency, investigation, corruption prevention, and regulation of ordinary administrative conduct. It becomes increasingly constitutionally constrained when ethics regulation directly limits presidential decision-making, conditions the exercise of exclusive Article II powers, or creates coercive enforcement mechanisms insulated from presidential control.

The Vice President occupies an intermediate position: Congress may generally apply ordinary executive ethics requirements to the Vice President, but must account for the Vice President's constitutionally assigned Senate and succession functions.

And after *Trump v. Slaughter*, Congress should no longer regard the traditional independent-agency model as a generally available solution to the problem of executive ethics. The Court's June 2026 decision overruled *Humphrey's Executor* and strengthened the principle that executive officers exercising executive power must remain subject to presidential control.

The more constitutionally durable model is therefore **not an ethics bureaucracy independent of the President.**

It is an ethics system in which:

Congress establishes the rules; ethics officials administer them; investigators investigate independently; Congress oversees; courts adjudicate legal disputes; and the President retains constitutionally required control over the Executive Branch.